

# Easement

Version 3.5 released on 7/1/25

PW 010215023

**CITY COUNCIL USE ONLY**

Date Received: \_\_\_\_\_  
 Committee Date: \_\_\_\_\_  
 1<sup>st</sup> Agenda Date: \_\_\_\_\_

Tracking #: \_\_\_\_\_  
 Committee: \_\_\_\_\_  
 Hearing Date: \_\_\_\_\_  
 2<sup>nd</sup> Agenda Date: \_\_\_\_\_

**CITY CLERK USE ONLY**

☐ Scanned Date: 09.24.2025  
☐ Posted Item #: 2507.02444

**All department items requiring Council approval must be submitted through the Mayor's Office.****Primary Details****Board Approval****Other Board Name****City Council Approval**☒ Yes ☐ No

**Department**  
Public Works

**Contact Name**  
Courtney Jones 08.15.25

**Email**  
courtneyjones@cityoftulsa.org

**Phone**  
918-596-9549

**Easement Type**  
Sanitary Sewer

**Owner-Grantor**  
OLT Sparks Development, Inc.

**Bid/Project Number**  
IDP 153576

**Project Title**  
Settler's Hill Off Site Sanitary Sewer

**Council District**  
6

**Section**  
24

**Township**  
19

**Range**  
14

**Addition**  
UNPLATTED

**Lot**

**Block**

**Address**  
19100 East 31st Street South

**Parcel Number**  
602

**Additional Information/Tracking Number**  
Property is also located at 3380 South 193rd East Avenue

**Budget****Contract Types**☒ **No Payments Involved**☐ Revenue Contracts☐ Expense Contracts**Funding Source(s)****DONATION:****TOTAL:** \$0.00**Approvals****Department:** 7.24.25**Legal:** Erika Grayson**Board:** Krystal S. Reyes**Mayor:** Mayor Pro Tem**Other:****Date:** 8/21/2025**Date:** 9-4-25**Date:** SEP 24 2025**Date:****Date:****Policy Statement****Background Information**

This Sanitary Sewer easement is being donated by OLT Sparks Development, Inc., an Oklahoma corporation, as a requirement of IDP 153576. This Sanitary Sewer easement is required for infrastructure improvements for Settler's Hill residential subdivision.

PDZ: POB 08.21.25 MSL: MSL 8/18/25 swb

**Summation of the Requested Action**

Mayoral approval and City Council acceptance.

**Other Pertinent Details****Processing Information for City Clerk's Office****Post Execution Processing**☐ Mail vendor copy (add'l signature copies attached)☒ **Must be filed with other governmental entity**☐ Add'l governmental entity approval(s) required**Additional Routing, Processing or Contact Details**

Original to be picked up by Courtney Jones for further processing. (6-9549)

## SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **OLT SPARKS DEVELOPMENT, INC., an Oklahoma corporation**, (Grantor) the owner of the legal and equitable title to the following real estate situated in Tulsa County, State of Oklahoma, for and in consideration of the sum of TEN AND NO/100 (\$10.00) DOLLARS cash in hand paid by the CITY OF TULSA, OKLAHOMA, a municipal corporation, (City) and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City, a perpetual easement, through, over, under and across the following described property:

See Exhibit "A"

for the purpose of permitting the City, to construct a sanitary sewer thereon through, over, under, and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for its administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 15<sup>th</sup> day of July, 2025.

CITY OF TULSA  
OFFICE OF CITY CLERK  
175 E. 2ND ST-STE 260  
TULSA, OKLAHOMA 74103

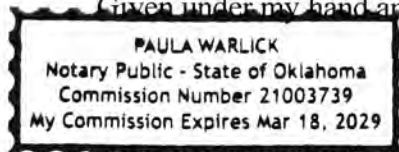
**OLT SPARKS DEVELOPMENT, INC.,  
an Oklahoma corporation**

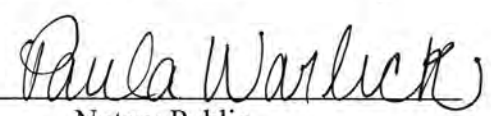
By:   
Name: Pete Kourtis  
Title: President

STATE OF OKLAHOMA     )  
                                          ) ss.  
COUNTY OF TULSA     )

Before me, the undersigned, a Notary Public, in and for said County and State on this 15<sup>th</sup> day of July, 2025, personally appeared **Pete Kourtis**, known to be the identical person who subscribed the name of **OLT SPARKS DEVELOPMENT, INC., an Oklahoma corporation**, to the foregoing as its President and acknowledged to me that he executed the same as his free and voluntary act and deed and as the free and voluntary act and deed of **OLT SPARKS DEVELOPMENT, INC., an Oklahoma corporation**, for the uses and purposes therein set forth.

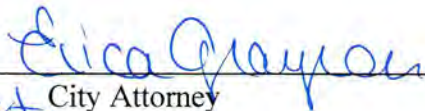
Given under my hand and seal of office the day and year last above written.



  
Notary Public

My commission expires:  
Mar 18, 2029

**APPROVED AS TO FORM:**

  
Asst. City Attorney

**APPROVED AS TO SUBSTANCE:**

  
Director

**ACCEPTED BY CITY COUNCIL:**

Date: \_\_\_\_\_

BY: \_\_\_\_\_

Name: Phil Lakin, Jr.  
Title: Chair

**APPROVED BY MAYOR:**

CITY OF TULSA, OKLAHOMA,  
a municipal corporation

Date: \_\_\_\_\_

BY: \_\_\_\_\_

Name: Monroe Nichols IV  
Title: Mayor

**ATTEST:**

\_\_\_\_\_  
City Clerk

[illegible]

Before me, a Notary Public in and for said County and State, on the \_\_\_\_ day of \_\_\_\_\_, 2025, personally appeared Phil Lakin, Jr., to me known to be the identical person who accepted the within and foregoing instrument as Chair of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

[illegible]

Before me, a Notary Public in and for said County and State, on the \_\_\_\_ day of \_\_\_\_\_, 2025, personally appeared Monroe Nichols IV, to me known to be the identical person who approved the within and foregoing instrument as Mayor of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

JBH

## 25' SANITARY SEWER EASEMENT

### PROPERTY DESCRIPTION

**OWNER: OWASSO LAND TRUST**

**Parcel No. 99424-94-24-31400**

**Parcel No. 99424-94-24-31020**

AN UNPLATTED PARCEL OF LAND SITUATED IN THE NORTHEAST QUARTER (NE/4) OF SECTION 24, TOWNSHIP 19 NORTH, RANGE 14 EAST, OF THE INDIAN MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE U.S. GOVERNMENT SURVEY THEREOF, BASIS OF BEARING IS THE EAST LINE OF THE NORTHEAST QUARTER OF SECTION 24, BEING S 01 25'47"E.

### 25' SANITARY SEWER EASEMENT DESCRIPTION:

A 25.00 FOOT UTILITY EASEMENT OVER A PART OF THE ABOVE DESCRIBED PROPERTY, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS, TO-WIT: COMMENCING AT THE NORTHEAST CORNER OF THE ABOVE DESCRIBED PROPERTY; THENCE SOUTH 01°25'47" EAST AND ALONG THE EAST LINE OF THE NORTHEAST QUARTER (NE/4) A DISTANCE OF 148.34 FEET; THENCE NORTH 90°00'00" WEST A DISTANCE OF 198.30 FEET TO THE POINT OF BEGINNING; THENCE SOUTH 00°00'00" EAST A DISTANCE OF 25.00 FEET; THENCE SOUTH 90°00'00" WEST A DISTANCE OF 131.99 FEET; THENCE SOUTH 00°00'00" WEST A DISTANCE OF 116.64 FEET; THENCE SOUTH 49°30'30" WEST A DISTANCE OF 205.28 FEET; THENCE SOUTH 43°47'13" WEST A DISTANCE OF 102.16 FEET; THENCE SOUTH 33°55'04" WEST A DISTANCE OF 182.65 FEET; THENCE SOUTH 66°41'51" WEST A DISTANCE OF 161.79 FEET; THENCE SOUTH 47°34'56" WEST A DISTANCE OF 296.52 FEET; THENCE SOUTH 35°00'00" WEST A DISTANCE OF 176.75 FEET; THENCE SOUTH 62°11'15" WEST A DISTANCE OF 277.44 FEET; THENCE NORTH 84°13'37" WEST A DISTANCE OF 297.60 FEET; THENCE SOUTH 76°59'58" WEST A DISTANCE OF 210.68 FEET; THENCE NORTH 78°11'52" WEST A DISTANCE OF 266.40 FEET; THENCE NORTH 90°00'00" WEST A DISTANCE OF 486.56 FEET TO A POINT ON THE WEST LINE OF THE NORTHEAST QUARTER (NE/4); THENCE NORTH 01°25'47" WEST ALONG SAID WEST LINE OF THE NORTHEAST QUARTER (NE/4) A DISTANCE OF 25.01 FEET; THENCE NORTH 90°00'00" EAST A DISTANCE OF 489.67 FEET; THENCE SOUTH 78°11'52" EAST A DISTANCE OF 263.49 FEET; THENCE NORTH 76°59'58" EAST A DISTANCE OF 209.32 FEET; THENCE SOUTH 84°13'37" EAST A DISTANCE OF 294.19 FEET; THENCE NORTH 62°11'15" EAST A DISTANCE OF 263.85 FEET; THENCE NORTH 35°00'00" EAST A DISTANCE OF 173.46 FEET; THENCE NORTH 47°34'56" EAST A DISTANCE OF 303.48 FEET; THENCE NORTH 66°41'51" EAST A DISTANCE OF 158.64 FEET; THENCE NORTH 33°55'04" EAST A DISTANCE OF 177.46 FEET; THENCE NORTH 43°47'13" EAST A DISTANCE OF 105.57 FEET; THENCE NORTH 49°30'30" EAST A DISTANCE OF 195.00 FEET; THENCE NORTH 00°00'00" EAST A DISTANCE OF 130.11 FEET; THENCE NORTH 90°00'00" EAST A DISTANCE OF 156.99 FEET TO THE POINT OF BEGINNING, AND CONTAINING 72,920.27 SF OR 1.674 ACRES.

I, Daniel S. Goss, of D. Goss & Associates, certify that the above legal description closes in accord with existing records, is a true representation of the easement as described and meets the minimum technical standards for land surveying of the State of Oklahoma.

Daniel S. Goss, PLS No. 1316, C.A. No. 3932 Exp. Date: 6/30/26

Date

Field Date: 1/17/24  
Phone: 918-371-0096

D. Goss & Associates, 12347 Heywood Hill Road, Sapulpa, Ok. 74066  
Email: [survey@dgoss-survey.com](mailto:survey@dgoss-survey.com)



# 25' SANITARY SEWER EASEMENT

OWNER:

**OWASSO LAND TRUST**  
25' SANITARY SEWER EASEMENT

PARCEL NO.

99424-94-24-31400  
99424-94-24-31020



0 25 50 100 150 200  
SCALE: 1" = 200'

I, Daniel S. Goss, of D. Goss & Associates, certify that the attached plat of survey is a true representation of the easement as described and meets the minimum technical standards for land surveying of the State of Oklahoma.

*6.2.25*

Daniel S. Goss, PLS No. 1316 Date:  
12347 Heywood Hill Road, Sapulpa, Ok. 74066  
Phone: 918-371-0096 Email: survey@dgoss-survey.com  
C.A. No. 3932 Exp. Date: 6/30/24

FIELD DATE: 1/17/2024

NE/4 SECTION 24

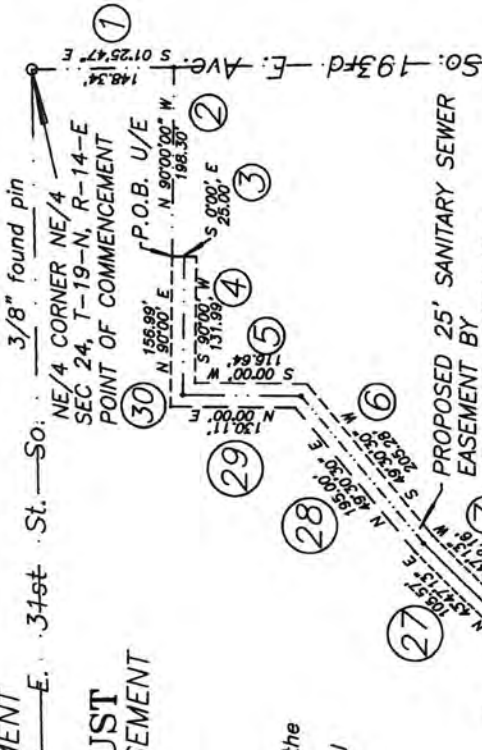
NOTE: EACH EASEMENT CORNER POINT HAS BEEN SET WITH A 3/8" IP AND CAP.



SURFACE AREA OF SURVEYED  
AREA: 72,920.27 SF / 1.674 ac.

PROPOSED 25' SANITARY SEWER EASEMENT BY  
SEPARATE INSTRUMENT

WEST LINE NE/4  
SECTION 24



BASIS OF BEARING IS THE EAST  
LINE OF THE NE/4  
OF SECTION 24, S 01°25'47"E

15. N 78°11'52" W - 266.40'
16. N 90°00'00" W - 486.56'
17. N 01°25'47" W - 25.01'
18. N 90°00'00" E - 489.67'
19. S 78°11'52" E - 263.49'
20. N 76°59'58" E - 209.32'
21. S 84°13'37" E - 294.19'
22. N 62°11'15" E - 263.85'
23. N 35°00'00" E - 173.46'
24. N 47°34'56" E - 303.48'
25. N 66°41'51" E - 158.64'
26. N 33°55'04" E - 177.46'
27. N 43°47'13" E - 105.57'
28. N 49°30'30" E - 195.00'
29. N 00°00'00" E - 130.11'
30. N 90°00'00" E - 156.99'

1. S 01°25'47" E - 148.34'
2. N 90°00'00" W - 198.30'
3. S 00°00'00" E - 25.00'
4. S 90°00'00" W - 131.99'
5. S 00°00'00" W - 116.64'
6. S 49°30'30" W - 205.28'
7. S 43°47'13" W - 102.16'
8. S 33°55'04" W - 182.65'
9. S 66°41'51" W - 161.79'
10. S 47°34'56" W - 296.52'
11. S 35°00'00" W - 176.75'
12. S 62°11'15" W - 277.44'
13. N 84°13'37" W - 297.60'
14. S 76°59'58" W - 210.68'

